

25STCV16860 25STCV16860

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Case Number: 25STCV16860 Hearing Date: September 3, 2026 Dept: 517

Plaintiffs

Claudia Niepokny and Barry Niepokny, Jr. (the "Niepoknys") sued Defendants Paramount Recovery Service ("Paramount") and Millenium Capital and Recovery Corporation ("Millenium") (collectively, "the Defendants") for conversion and violation of the Rosenthal Fair Debt Collection Practices Act in connection with what the Niepoknys allege was the unlawful repossession of the their motor vehicle, a 2018 Toyota RAV4 ("the Subject Vehicle"). In their Complaint, the Niepoknys allege that the lender from which they borrowed money to purchase the Subject Vehicle after they fell behind on loan payments hired Millenium, a repossession agency, to repossess the Subject Vehicle, and that Millenium retained Paramount as its agent to carry out that act.

In February 2026, the Niepoknys noticed the deposition of Thomas Uribe ("Uribe").

Uribe is a Paramount employee who was involved in the actual repossession of the Subject Vehicle from inside the locked Niepoknys' parking garage. At the deposition, the Defendants' counsel objected to three questions posed by the Niepoknys' counsel and instructed Uribe not to answer them.

Those three questions asked Uribe for (1) his home address; (2) his personal cell phone number; and (3) whether he ever has been arrested.

Pending before the Court is the Niepoknys' motion to compel Uribe to answer those questions at a second deposition.

The Niepoknys also seek in the motion an award of \$11,220 for their attorney fee's in connection with the motion as a monetary sanction against the Defendants and their counsel. They also

seek attorney's fees and costs associated with the second deposition. The Court is granting the motion in part.

As to

the questions seeking Uribe's address and cell number phone number, the Niepoknys are entitled to obtain answers from Uribe. Defendants' privacy objections to compelling Uribe to reveal that information find no moorings in the Code of Civil Procedure and case law. The Niepoknys' argument regarding their entitlement to obtain Uribe's home address and cell phone number are correct.

The Defendants are on firmer footing, however, with respect to the question about Uribe's arrest history. Arrestees have a legitimate privacy interest in the nondisclosure of their arrest records, which can only be overcome upon a showing of significant evidentiary value to the party seeking that information. (Craig v. Municipal Court (1979) 100 Cal.App.3d 69, 79.) Here, the Niepoknys have not demonstrated the evidentiary value of obtaining Uribe's history of arrests for any and every possible crime. The arrest record question posed to Uribe was too broad.

The Niepoknys' motion is denied to the extent that it seeks to compel Uribe to answer it. At the second deposition, however, the Niepoknys' counsel may ask Uribe whether he ever has been arrested in connection with his work in repossessing motor vehicles, such as for car theft, trespass, or burglary. Such information has evidentiary value in that it may show that Uribe's action in repossessing the Subject Vehicle from the Niepoknys' garage reflects a common plan, intent, or absence of mistake within the meaning of Evidence Code section 1101, subdivision (b).

Turning to the Niepoknys' request in the motion for monetary sanctions, the \$11,220 in attorney's fees that is being sought is based on their counsel's statement in a declaration supporting the motion that he spent 13.2 hours working on it at his hourly billing rate of \$850. The Court is reducing the amount sought by 1/3 given that the Niepoknys succeeded on 2 of the 3 questions, but not all 3 questions, that were the subject of their motion. This reduction comes out to \$7,840. That monetary sanction is imposed on the Defendants and their counsel. It is payable to the Niepoknys' counsel within 60 days of this order. The Court also grants the Niepoknys' motion to the extent that it seeks attorney's fees and costs associated with the second deposition.